IN THE CIRCUIT COURT OF THE 16TH
JUDICIAL CIRCUIT OF THE STATE OF
FLORIDA, IN AND FOR MONROE COUNTY

ADMINISTRATIVE ORDER: 2.004/26-3
AMENDED

IN RE:

CIRCUIT COURT DIVISION
ASSIGNMENTS; OFFICIAL
HEADQUARTERS
_____:

WHEREAS, the Chief Judge is charged by Rule 2.215(b)(4), Florida Rules of General Practice and Judicial Administration with the responsibility of assigning judges to courts and divisions in the Circuit, and

WHEREAS, there is a desire to distribute the workload of the Circuit Court on an equitable and geographical basis;

IT IS THEREFORE ORDERED THAT:

A. The Circuit Court caseload shall be apportioned on the basis of the courthouse location at which the case is filed.

1. Civil Division

a. Four-fifths of new and pending cases filed in the Lower Keys Division shall be assigned to Judge Timothy Koenig and one-fifth shall be assigned to Judge Mark H. Jones.

All new and pending Involuntary Civil Commitment of Sexually Violent Predator cases (ICCSVP), formally referred to as cases reported under the Jimmy Ryce Act, shall be assigned to Judge Timothy Koenig.

b. All new and pending cases filed in the Middle Keys Division, including Involuntary Civil Commitment of Sexually Violent Predator cases, shall be assigned to Judge Mark Jones.

c. All new and pending cases in the Upper Keys Division shall be assigned to Judge James Morgan.

All new and pending Involuntary Civil Commitment of Sexually Violent Predator cases (ICCSVP), formally referred to as cases reported under the Jimmy Ryce Act, shall be assigned to Judge James Morgan.

The Clerk of the Court is directed to ensure the automated civil case system accurately reflects the judges assigned to each case especially in the event of a reassignment.

2. Criminal Division

a. All circuit criminal cases filed in the Lower Keys Division shall be divided alphabetically by the last name of the defendant. Cases wherein the defendant's last name begins with the letters A through L shall be temporarily assigned to County Judge Mark Wilson. Cases wherein the defendant's last name begins with the letters M through Z shall be assigned to Judge Mark Jones. In the event that there are co-defendants in a case, the entire case with all defendants, and any violation of probation charge arising there from, shall be assigned to the judge having jurisdiction over the "A" defendant's case.

Cases in the Lower Keys Division that are reopened due to a violation of probation charge shall be assigned to the appropriate judge based upon the last name of the defendant regardless of which judge originally sentenced the defendant to probation.

Judge Mark H. Jones is the designated Drug Court Judge in the Lower Keys Division, and as such shall he assigned to all drug diversion cases as well as drug offender probation cases.

b. All new cases filed in the Middle Keys Division shall be temporarily assigned to County Judge Derek Lewis.

Judge Derek Lewis is the designated Drug Court Judge in the Middle Keys Division, and as such shall be assigned to all drug diversion cases as well as drug offender probation cases.

c. All cases filed in the Upper Keys Division shall be assigned to Judge James Morgan.

Judge James Morgan is the designated Drug Court Judge in the Upper Keys Division, and as such shall be assigned to all drug diversion cases as well as drug offender probation cases.

All new criminal cases shall be scheduled for arraignment on the basis of a felony arraignment calendar that will be published by the Court Administrator's Office. This calendar shall specify the date, time, location, and presiding judge. If the assigned presiding judge is unable to preside over a specific arraignment docket, a substitute judge may be assigned to preside over that docket by the Chief Judge.

The Clerk of the Court is directed to maintain a record of the number of active cases assigned to each judge in the Circuit Criminal Division. A monthly report shall be provided to the Chief Judge listing the number of Circuit Criminal Division new filings and active cases assigned to each judge, including cases which may be assigned to county

court judges, senior judges, and other judges who may be assigned from other circuits. This report shall be provided no later than the 10th day of the following month and shall be copied to the Court Administrator's Office.

3. Family Division

a. All new and pending domestic relations cases filed in the Lower Keys Division, with the exception of juvenile delinquency and injunctions for protection, shall be assigned to Judge Bonnie J. Helms.

All new and pending juvenile delinquency cases filed in the Lower Keys shall be temporarily assigned to County Judge Mark Wilson.

All new and pending injunctions for protection cases filed in the Lower Keys Division shall be temporarily assigned to County Judge Albert Kelley.

Judge Bonnie J. Helms will hear all post-judgment matters in domestic relations cases in the Lower Keys Division, whether or not she was the judge who was originally assigned to the case.

Judge Bonnie J. Helms is the designated drug court judge for Family Treatment Court and Juvenile Drug Court in the Lower Keys Division.

Judge Bonnie J. Helms is the designated judge for all Unified Family Court Cases.

b. All new and pending domestic relations cases filed in the Middle Keys Division, with the exception of juvenile delinquency, shall be assigned to Judge Bonnie J. Helms.

All new and pending juvenile delinquency cases filed in the Middle Keys shall be temporarily assigned to County Judge Mark Wilson.

Judge Bonnie J. Helms will hear all post-judgment matters in domestic relations cases in the Middle Keys Division whether or not she was the judge who was originally assigned to the case.

Judge Bonnie J. Helms is the designated drug court judge for Juvenile Drug Court and Family Treatment Court cases in the Middle Keys Division.

Judge Bonnie Helms is the designated judge for all Unified Family Court Cases.

c. All new domestic relations cases filed in the Upper Keys Division, with the exception of juvenile dependency shall be assigned to Judge James Morgan.

All new juvenile dependency cases filed in the Upper Keys Division shall be temporarily assigned to County Judge Sharon Hamilton.

Judge James Morgan will hear all post-judgment matters in domestic relations cases in the Upper Keys Division, excluding juvenile dependency cases, whether or not he was the judge who was originally assigned to the case. Judge Sharon Hamilton will hear all post-judgment matters in juvenile dependency cases, whether or not she was the judge who was originally assigned to the case.

Judge James Morgan is the designated drug court judge for Juvenile Drug Court and Judge Sharon Hamilton is the designated drug court judge for Family Treatment Court cases in the Upper Keys Division.

Judge James Morgan is the designated judge for all Unified Family Court Cases.

All new juvenile delinquency cases shall be scheduled for arraignment on the basis of a juvenile arraignment calendar that will be published by the Court Administrator's Office. This calendar shall specify the date, time, location and presiding judge. If the assigned presiding judge is unable to preside over a specific arraignment docket, a substitute judge may be assigned to preside over that docket by the Chief Judge. Any case continued at arraignment shall be continued to the next arraignment docket of the presiding judge.

4. Probate and Guardianship Division

a. All new and pending Probate cases in the Lower Keys Division shall be assigned to Judge Timothy Koenig. All new and pending Mental Health and Guardianship cases shall be assigned to Judge Bonnie J. Helms.

b. All new cases filed in the Middle Keys Division shall be assigned to Judge Bonnie J. Helms.

c. One-half of all Probate, Guardianship and Mental Health cases in the Upper Keys Division shall be assigned to Judge Timothy Koenig and one-half shall be assigned to Judge Bonnie Helms. In instances where a guardianship case has a companion mental health case, both cases shall be assigned to the same judge.

B. The Clerk is instructed to establish procedures to ensure the distribution of cases as prescribed in Section A above.

C. For purposes of travel reimbursement authorized and allowable under Section 112.061, Florida Statutes, the official headquarters for each judge shall he as follows:

1. Mark H. Jones, Key West
2. Timothy J. Koenig, Key West
3. Bonnie J. Helms, Key West
4. James Morgan, Plantation Key

D. Nothing herein is intended to preclude the assignment of a Circuit Judge to a secondary office location, division or case, or assignment to the County Court when proper judicial administration may require.

E. The assignments in this Order are for the period of July 1, 2026-December 31, 2026, or until further order of the Chief Judge. However, this Order shall not operate contrary to any incidental reassignment of cases or any other modifications that may have been or may be entered by the Chief Judge.

F. Administrative Order 2.004/26-2, *Circuit Court Division Assignments; Official Headquarters*, entered on June 24, 2026, is rescinded upon execution below.

DONE AND ORDERED at Key West, Monroe County, Florida, this 28 day of July, 2026.

Honorable Timothy J. Koenig
Chief Judge